

Court No. - 3

Case :- WRIT - C No. - 14475 of 2022

Petitioner :- Asrfi Lal

Respondent :- State Of U.P. And 3 Others

Counsel for Petitioner :- Balram Jee Verma

Counsel for Respondent :- C.S.C., Chandra Shekhar Singh

Hon'ble Surya Prakash Kesarwani, J.

Hon'ble Jayant Banerji, J.

Heard Sri Balram Jee Verma, learned counsel for the petitioner, learned standing counsel for the State-respondents and Sri Chandra Shekhar Singh, learned counsel for the respondent No.2, 3 and 4.

This writ petition has been filed praying for the following relief:

"(i) Issue a writ order or direction in the nature of certiorari quashing the illegal determination of electricity due for Rs. 600032.38/- pursuant of impugned demand notice dated 10.09.2021 issued from the office of respondent no. 3.

(ii) Issue a writ order or direction in the nature of mandamus commanding and directing the respondents not to realize the aforesaid amount of Rs. 600032.38/- as electrify dues from the petitioner by adopting coercive measure against the petitioner."

Sri Chandra Shekhar Singh, learned counsel for the respondent No.2, 3 and 4/ Power Distribution Corporation, states on instructions that the petitioner may file objection against the impugned demand which shall be decided in accordance with law within a time bound period.

In view of the aforesaid and without expressing any opinion on merits of the case of the petitioner, **this writ petition is disposed off** giving liberty to the petitioner to submit his/ her objection under Para 6.8 of U.P. Electricity Supply Code, 2005 before the respondent No.3, within four weeks from today along with a certified copy of this order. In the event such an objection is submitted within the stipulated period, it shall be decided by the respondent No.3 in accordance with law within next four weeks, after affording reasonable opportunity of hearing to the petitioner.

For a period of eight weeks or till disposal of the objection of the petitioner, whichever is earlier, no coercive action shall be taken against the petitioner in pursuance of the impugned demand.

Order Date :- 7.7.2022

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